**TOWN OF MOUNT PLEASANT, SOUTH CAROLINA**
**BOARD OF ZONING APPEALS**
**AUGUST 28, 2017**
**MINUTES**

Present: Joseph Belton, vice-chair, Barry Wolff, Bobby Carrier, Glyn Cowden.
Absent: Mason Smith, Stephen Wood, Stephen Duke (all excused)
Staff: Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6:02 pm and reviewed the procedures with the public.

**1. Approval of Minutes**

*Mr. Cowden moved for approval of the minutes. Mr. Carrier seconded the motion. All in favor.*

**2. Public Comment & General Correspondence**

Mr. Robertson stated that there was no additional correspondence received.

Mr. Belton administered the oath to those speaking.

**3. Business**

**A. A-1-17, 141 Toomer Lane, 517-15-00-106, Appeal of the Decision of a Zoning Official regarding the interpretation and application of the definition of "BUILDING HEIGHT" in §156.007 DEFINITIONS.**

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Hamlin O'Kelley, representative for the homeowner, clarified where they feel the height of the building should be measured for the Board. He reviewed the request with the Board.

Mr. Wolff suggested that it is clear how the building height should be measured.

Mr. Belton suggested that there was a similar issue heard by the Board of Zoning Appeals. He suggested that it makes sense to measure the building as suggested by the applicant.

Mr. Wolff suggested that the request should be denied as Town Council should amend the ordinance to clarify how building height is measured. He suggested that based on how the ordinance is written, the Zoning Administrator made a correct interpretation.

There being no comment, Mr. Belton closed the public comment.

*Mr. Wolff moved to deny the request based on the findings that the Zoning Administrator made a correct interpretation based on how the ordinance is written. Mr. Cowden seconded the motion.*

Mr. Belton asked if there are anymore information on how building height should be measured. Mr. Robertson answered that based on the Board's decision, the ordinance would be interpreted in that manner going forward.

*Mr. Belton called for a vote on the motion. All in favor.*

**B. V-25-17, 141 Toomer Lane, 517-15-00-106, Request for relief from the strict standards of §156.303(C) to allow the height of a residence to exceed the maximum height of 35 feet by 2.5 feet.**

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. O'Kelley reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

*Mr. Wolff moved for approval of the request based on the findings included in the staff report and the applicant's response, the variance should be granted as they have met all criteria. Mr. Cowden seconded the motion.*

Mr. Carrier suggested that criteria three has not been met as the property would not be unreasonably restricted.

Mr. Cowden suggested that this would not be objectionable to the character of the Old Village. He suggested that if not approved, the house would not be able to be built because of the configuration and topography of the lot.

Mr. Belton suggested that the aesthetic value of the home should be taken into consideration. He stated that the front of the home would be seen from the street. He suggested that this home has been reviewed by the Old Village Historic District Commission (OVHDC) and approved. He suggested that if not approved, the character of the home would be significantly changed because the height would need to be so significantly dropped at the rear of the lot.

Mr. Robertson indicated where the grade was located on the plans for the Board.

*Mr. Belton called for a vote on the motion. Motion carried on a 3 to 1 vote with Mr. Wolff, Mr. Cowden, and Mr. Belton in favor; Mr. Carrier opposed.*

**C. V-26-17, 514 Deer Street, 532-09-00-127, Request for relief from the strict standards of §156.111(B)(3) and §156.303(C) to allow a detached accessory dwelling unit (ADU) located in the front yard to have a setback of 12 feet (30 foot required).**

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Heather Wilson reviewed the request with the Board.

Mr. Wolff asked if all the homes front Deer Street. Ms. Wilson answered in the affirmative.

Mr. Belton asked if the ADU could be constructed in a different location on the lot. Ms. Wilson answered in the negative and stated that there are a number of protected trees on the lot and with the tree protection zones, the proposed location would be the best.

Mr. Carrier asked if the shed and carport would be removed. Ms. Wilson answered in the affirmative. Mr. Carrier asked if the slab would be retained. Ms. Wilson answered that it would need to be removed to have structurally sound footings and foundation. Mr. Carrier suggested that if a portion was being retained, then there could be justification that there were improvements being made.

Ms. Wilson suggested that if allowed to use the same footprint of the carport, the ADU would be larger than proposed. She suggested that this might not be allowed.

Mr. Wolff asked if the ADU would be accessed from Speights Avenue. Ms. Wilson answered in the negative.

Mr. Carrier suggested that denial of this request would not unreasonably restrict the use of the property.

Mr. Belton suggested that the proposed location would be the best location with the number of protected trees. Ms. Wilson agreed. Mr. Belton asked the reason for the request. Ms. Wilson answered that the home is relatively small so they would like space for a small home office and additional storage.

Mr. Carrier suggested that there could be a problem with encroachment into a tree protection zone if the structure was moved back. He also suggested that this should not be considered new construction but "renewed construction".

There being no comments, Mr. Belton closed the public comments.

Mr. Wolff suggested that the request would be less square footage than the existing structure. He suggested that it is a reasonable request.

Mr. Belton asked Mr. Wolff is the request meets the four criteria for a variance. Mr. Wolff stated that the Board has approved previous requests on the basis that small families need additional room and storage.

*Mr. Wolff moved for approval of the request based on the findings that the request has met the criteria outlined in the staff report and application and that a structure of the same square footage could not be constructed that would not prohibit the use of the property. Mr. Cowden seconded the motion. All in favor.*

**4. Approval of Final Orders**

The Board signed final orders from the previous meeting.

There being no further business, the meeting adjourned at 6:50 pm.

Submitted by,
L. Lynes
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